

FL-20-000712 BRADSHAW VS BRADSHAW

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-07-30

Motion: Petitioner's Request for Order re Stay, etc.—HEARING REQUIRED. The Court previously and tentatively denied Petitioner's order request pursuant to the Findings and Order After Hearing of June 25, 2026, but continued the hearing to the present in order to permit Petitioner to file supplemental briefing. The Court has reviewed Petitioner's Brief filed on June 15, 2026. Primarily, Petitioner corrected the citation to Family Code section 3038 and argues that Family Code section 3151 provides applicable authority for her request and, in particular, subpart (c)(5) of that section, which states: (c) The child's counsel shall have the following rights: (5) Access to the child's medical, dental, mental health, and other health care records, school and educational records, and the right to interview school personnel, caretakers, health care providers, mental health professionals, and others who have assessed the child or provided care to the child. The release of this information to counsel shall not constitute a waiver of the confidentiality of the reports, files, and any disclosed communications. Counsel may interview mediators; however, the provisions of Sections 3177 and 3182 shall apply. On its face, the plain language of this section and all its subparts do not support Petitioner's position. If anything, it is to the contrary. Petitioner offers no precedential authority supporting her interpretation and the Court's independent research disclosed none. Certainly, minor's counsel may not waive the confidentiality and other privileges attaching to the medical records of the minor, but this section establishes that no such waiver obtains merely by minor's counsel seeking and obtaining them. The Court has discretion to restrict the scope of minor's counsel's assignment and, ultimately, to remove minor's counsel in the event of misconduct or when the best interests of the minor child compel such. Petitioner also filed a further brief on July 16, 2026, that was not authorized by the Court's prior FOAH. Petitioner alleges a complaint by the minor against minor's counsel with the State Bar of California. The Court may or may not elect to consider the merits of this brief at the hearing but, as it purports to raise additional grounds not within the scope of Petitioner's original order request, the Court may instead require Petitioner to file and serve this a separate order request in order to provide all other parties and/or counsel the opportunity to respond and be heard on it. The Court will note, however, that Petitioner's allegations about this complaint are hearsay upon hearsay, and that the mere existence of a complaint to the State Bar tells the Court nothing about the merits of the charges. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES.: Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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